

Nepal Veterinary Council Act, 1999

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.10.17
2. Some Nepal Acts Amendment Act, 2075 (2018) to Make Consistent with the Constitution of Nepal 2075.1.19

Act No. 24 of the year 2054 (1998)

An Act Made to Provide for Matters Relating to the Nepal Veterinary Council

Preamble: Whereas, it is expedient to establish a Nepal Veterinary Council to make the veterinary profession effective and well-regulated, and to make provisions for the registration of names of veterinarians according to their qualifications in Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.;

This Act is enacted by Parliament in the twenty-seventh year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter - 1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Nepal Veterinary Council Act, 2054 (1998)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Council" means the Nepal Veterinary Council established pursuant to Section 3.

(b) "Chairperson" means the Chairperson of the Council.

(c) "Member" means a member of the Council and includes the Chairperson and Vice-Chairperson of the Council.

(d) "Register" means the register for registering the names of veterinarians under this Act.

(e) "Registered Veterinarian" means a veterinarian whose name is registered in the Register.

(f) "Veterinarian" means a person who has obtained at least a Bachelor's degree in veterinary science from a

teaching institution recognized by the Council.

(g) "Registrar" means the Registrar appointed pursuant to Section 19.

(h) "Veterinary Drug" means any substance, hormone, or biological substance used in the diagnosis, treatment, or control of animal diseases, and includes protein, salt, or vitamins used in animal feed.

(i) "Animal" includes mammals, birds, and fish.

(j) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

Chapter - 2

Establishment, Formation, Functions, Duties, and Powers of the Council

3. Establishment of Council: A Nepal Veterinary Council is hereby established to make the veterinary profession effective and well-regulated, to manage it scientifically, and to make provisions for the registration of names of veterinarians according to their qualifications. 4. Council to be an Autonomous Body: (1) The Council shall be an autonomous and corporate body with perpetual succession.

(2) The Council shall have its own seal for all its business.

(3) The Council may, like an individual, acquire, use, sell, or otherwise dispose of movable and immovable property.

(4) The Council may, like an individual, sue and be sued in its own name.

5. Formation of Council: (1) The Council established pursuant to Section 3 shall consist of the following members:-

(a) A registered veterinarian of "A" category nominated by the Government of Nepal - Chairperson

(b) Two veterinarians elected from among registered veterinarians - Vice-Chairperson

(c) Two registered veterinarians of at least "B" category nominated by the Government of Nepal - Member

(d) Five veterinarians elected from among registered veterinarians - Member

(e) President, Nepal Veterinary Association - Member

(2) Until the Council is formed pursuant to Sub-section (1), the Government of Nepal may form a committee to perform the functions to be performed by the Council. The committee so formed shall not remain in force for a period exceeding one year. 6. Term of Office of Members: (1) The term of office of members pursuant to Clauses (a), (b), (c), and (d) of Sub-section (1) of Section 5 shall be four years. Members whose term has expired may be re-nominated or re-elected subject to other provisions of this Act.

(2) If the office of any member falls vacant before the expiry of the term pursuant to Sub-section (1), such vacant office may be filled by nomination or election for the remaining period. Provided that no election or nomination shall be made for a period of less than six months. 7. Disqualification for Membership: The following persons shall not be eligible to be nominated or elected as a member of the Council:-

(a) A person who is not a Nepali citizen,

(b) A person whose name has been removed from the Register,

(c) A person who has been adjudged insolvent for inability to pay debts,

(d) A person who has been convicted by a court of a criminal offense involving moral turpitude and sentenced, and

(e) A person of unsound mind. 8. Vacation of Membership of Council: The membership of the Council shall not continue in the following circumstances:-

(a) If disqualified pursuant to Section 7,

(b) If resignation from the office of member is accepted,

(c) If absent from three consecutive meetings of the Council without prior notice of cause to the Council,

(d) Upon death. 9.

Functions, Duties, and Powers of Council: The functions, duties, and powers of the Council shall be as follows:- (a) To prepare necessary policies, plans, and programs for the smooth conduct of the veterinary profession and to implement them. (b) To formulate and submit to the Government of Nepal necessary policies, action plans, and programs to make animal health services and related systems well-regulated, standardized, dignified, and effective. (c) To advise the Government of Nepal on preparing necessary standards to ensure the quality of veterinary drugs, biological substances, animal feed, chicks, and animal production materials. (d) To determine the qualifications of veterinarians and to register the names of veterinarians who have fulfilled such determined qualifications and maintain updated records. (e) To prepare and implement a code of conduct to be followed by registered veterinarians. (f) To grant recognition, as prescribed, to teaching institutions providing veterinary education and the certificates and degrees awarded by such institutions. (g) To provide necessary consultation to the Government of Nepal on matters related to veterinary science and animal health. (h) To engage in endeavors for research or invention of veterinary drugs. (i) To exchange research or experiences related to veterinary science achieved internationally and recommend to the Government of Nepal for the implementation of matters suitable for Nepal. (j) To remove the name of a registered veterinarian from the Council if such veterinarian fails to comply with the code of conduct, following the prescribed procedure. (k) To perform any other functions necessary for achieving the objectives of the Council. 10. Meeting and Decision of Council: (1) The meeting of the Council shall ordinarily be held four times a year. (2) The meeting of the Council shall be held at the date, time, and place specified by the Chairperson. (3) If more than fifty percent of the total number of members of the Council are present, the meeting shall be deemed to have constituted a quorum. (4) The meeting of the Council shall be presided over by the Chairperson, and in his/her absence, by the Vice-Chairperson. In the absence of both the Chairperson and Vice-Chairperson, the members present at the meeting shall elect a person from among themselves to preside over the meeting. (5) The decision of the majority in the meeting of the Council shall prevail. In the case of a tie, the person presiding over the meeting may cast a casting vote. (6) The decision of the Council shall be certified by the Registrar. (7) Other procedures relating to the meeting of the Council shall be as determined by the Council itself. Chapter - 3 Provisions Relating to Name Registration 11.

Not to Practice without Name Registration: After one year from the date of commencement of this Act, no person whose name is not registered with the Council shall practice the veterinary profession. 12. Application for Name Registration: (1) A person desiring to register his/her name with the Council shall submit an application to the Council in the prescribed format. (2) A person who is practicing the veterinary profession at the time of commencement of this Act shall submit an application pursuant to Sub-section (1) to have his/her name registered with the Council within six months from the date of commencement of this Act. (3) A person submitting an application for name registration pursuant to Sub-section (1) or (2) shall attach the certificates,

degrees, and other related documents obtained by him/her and the prescribed fee with the application. 13. Action on Application and Certificate of Registration: (1) The Registrar shall make necessary inquiry into the application received pursuant to Section 12 and submit it to the relevant committee for registration of the name in the Register. (2) The relevant committee shall, upon inquiry into the application submitted pursuant to Sub-section (1) as to whether the qualification degree is recognized and whether the application is in proper form, submit a report to the Council within fifteen days. (3) Based on the report submitted by the committee pursuant to Sub-section (2), the Council shall decide whether to register the name of the applicant in the Register or not. (4) If the Council decides to register the name of the applicant pursuant to Sub-section (3), the Registrar shall register the name of such applicant in the Register and issue a certificate of registration to him/her in the prescribed format. If the Council decides not to register the name of the applicant, the Registrar shall inform the applicant accordingly. 14.

Removal of Name from Register and Re-registration: (1) The name of a registered veterinarian shall not be removed from the Register except in the following circumstances:- (a) Unsound mind, (b) Convicted by a court of a criminal offense involving moral turpitude, (c) Adjudged insolvent for inability to pay debts, (d) A resolution passed by a two-thirds majority of the Council stating that the code of conduct has not been followed. (2) If a veterinarian whose name has been removed from the Register due to circumstances under Clauses (a), (c), and (d) of Sub-section (1) submits an application for re-registration of his/her name stating a reasonable cause, and if the Council considers it reasonable to re-register his/her name, the Council may, by a decision of a two-thirds majority, order the re-registration of his/her name. (3) If an order is made pursuant to Sub-section (2), the Registrar shall, upon receipt of the prescribed fee, re-register the name of such veterinarian in the Register and issue a certificate. 15. Cancellation of Certificate: If it comes to the notice that the name of any person has been registered in the Register through fraud or mistake, and upon inquiry such fact is found to be true, the Council may cancel the registration certificate of such person. 16.

Categories of Veterinarians: For the purpose of registering the names of veterinarians under this Act, veterinarians having qualifications as follows are placed in the following categories:- (a) "A Category": A veterinarian who has obtained a PhD degree in Veterinary Science from a recognized teaching institution and has at least seven years of experience in the relevant field, or who has obtained a Master's degree in Veterinary Science from a recognized teaching institution and has at least ten years of experience in the relevant field, or who has obtained a Bachelor's degree in Veterinary Science from a recognized teaching institution and has at least fifteen years of experience in the relevant field, or a veterinarian who has obtained a Bachelor's degree in Veterinary Science from a recognized teaching institution and is serving in the Government of Nepal service at least at the gazetted first class or equivalent post, or at a post of at least Associate Professor in a university. (b) "B Category": A veterinarian who has obtained a PhD degree in Veterinary Science from a recognized teaching institution and has at least five years of experience in the relevant field, or who has obtained a Master's degree from a recognized teaching institution and has at least seven years of experience in the relevant field, or who has obtained a Bachelor's degree in Veterinary Science from a recognized teaching institution and has at least ten years of experience in the relevant field, or a veterinarian who has obtained a Bachelor's degree in Veterinary Science from a recognized teaching institution and is serving in the Government of Nepal service at least at the gazetted second class post, or at a post of at least Assistant Professor in a university. (c) "C Category": A veterinarian who has obtained at least a Bachelor's degree in Veterinary Science from a recognized teaching institution. 17. Application for Recognition: (1) A person who has obtained a degree, diploma, certificate, or similar other qualification in veterinary science from any teaching institution shall submit an application to the Council for its recognition as prescribed. (2) After inquiry into the application pursuant to Sub-section (1), the name of the teaching

institution granting the degree, diploma, certificate, or other qualification recognized by the Council shall be published in the Nepal Gazette. 18.

Notice Required upon Leaving Practice or Change of Address: If any registered veterinarian leaves his/her practice or changes his/her address, he/she shall notify the Registrar within one month. Chapter - 4 Provisions Relating to Employees 19. Appointment, Functions, Duties, and Powers of Registrar: (1) The Government of Nepal may appoint the Registrar of the Council from among persons whose names are registered with the Council and who possess the prescribed qualifications. (2) The Registrar shall act as the chief administrative officer of the Council. (3) The remuneration, terms of service, and facilities of the Registrar shall be as prescribed. (4) In addition to matters mentioned elsewhere in this Act, the functions, duties, and powers of the Registrar shall be as follows:- (a) To submit applications submitted by veterinarians for name registration to the relevant committee. (b) To implement or cause to implement the decisions made by the Council. (c) To enter the names of veterinarians in the Register according to the decision of the Council to register them as veterinarians. (d) To remove the name of a registered veterinarian from the Register upon his/her death. (e) To note in the Register upon receiving notice that a registered veterinarian has left practice or changed address. (f) To certify the decisions of the Council. (5) Other functions, duties, and powers of the Registrar shall be as specified by the Council. 20. Employees of Council: (1) The Council may appoint such number of employees as necessary for the operation of the Council, providing salary, allowances, and other facilities from its own financial resources. (2) The employees appointed pursuant to Sub-section (1) shall work under the supervision and control of the Registrar. (3) The terms of service and facilities of the employees appointed pursuant to Sub-section (1) shall be as prescribed in the bylaws. Chapter - 5 Fund and Audit 21.

Fund of Council: (1) The Council shall have a separate fund. (2) All expenses of the Council shall be borne from the fund pursuant to Sub-section (1). (3) The fund pursuant to Sub-section (1) shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount received as loan, donation, grant, or gift from domestic or foreign individuals, institutions, governments, or international organizations, (c) Amount collected from various fees levied by the Council, (d) Amount received from any other source. (4) Prior approval of the Government of Nepal shall be required for receiving amounts under Clause (b) of Sub-section (3). (5) Amounts received into the fund of the Council shall be deposited by opening an account in any commercial bank of Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. (6) The operation of the fund and account of the Council shall be as prescribed. 22. Accounts and Audit of Council: (1) The accounts of income and expenditure of the Council shall be kept as prescribed. (2) The audit of the Council shall be conducted by an auditor appointed by the Auditor General. (3) The Government of Nepal may, if it so desires, inspect or cause to inspect the accounts of the fund of the Council at any time. Chapter - 6 Miscellaneous 23. Dissolution of Council: (1) If it appears to the Government of Nepal that the Council has failed to exercise the powers conferred on it under this Act or the regulations made under this Act, or has consistently abused its powers, or has exercised powers beyond such powers, or has failed to perform its duties under this Act or the regulations made under this Act, the Government of Nepal shall direct the Council to rectify or correct such matters. (2) If the Council fails to rectify or correct its actions in accordance with the direction given pursuant to Sub-section (1), the Government of Nepal may dissolve the Council. (3) After the dissolution of the Council pursuant to Sub-section (2), until another Council is formed, the Government of Nepal may keep the fund and property of the Council under its own custody and may itself exercise all the powers that the Council would exercise under this Act or the regulations made under this Act, or may form a committee to exercise such powers. (4) The Government of Nepal shall form a new Council pursuant to Section 5 within three months of the dissolution of the Council

pursuant to Sub-section (2). 24.

Power to Form Committees: (1) The Council may, as necessary, form subject committees and other committees. (2) The functions, duties, powers, and procedures of subject committees and other committees formed pursuant to Sub-section (1) shall be as specified by the Council. 25. Meeting Allowance and Other Facilities for Members: The meeting allowance and other facilities for members and members of subject committees and other committees formed pursuant to Section 24 shall be as prescribed. 26. Authority for Investigation, Inquiry, and Prosecution: The authority or body authorized to investigate, inquire into, and prosecute offenses under Section 27, and the procedures relating thereto, shall be as specified by the Government of Nepal by notification published in the Nepal Gazette. 27. Offenses and Penalties: (1) If a person practices the veterinary profession without having his/her name registered with the Council pursuant to Section 11, such person shall be deemed to have committed an offense under this Act. (2) A person committing an offense pursuant to Sub-section (1) shall be liable to a fine of up to three thousand rupees or imprisonment for up to three months, or both. (3) Except as mentioned in Sub-section (2), a person performing any act contrary to this Act or the regulations made under this Act shall be liable to a fine of up to two thousand rupees. 28. Liaison with Government of Nepal: The Council shall maintain liaison with the Government of Nepal through the Amended by the Some Nepal Acts Amendment Act, 2075 (2018) to Make Consistent with the Constitution of Nepal. Ministry of Agriculture and Livestock Development. 29. Power to Make Rules and Regulations: (1) The Council may make necessary rules for the implementation of the objectives of this Act, and such rules shall come into effect only after approval by the Government of Nepal. (2) The Council may, subject to this Act and the rules made under this Act, make necessary regulations.